

		In addition, Moving Defendants do not present any explanation or evidence in support of the their request for costs. Therefore, the court will award costs in the amount of \$60. Moving Defendants shall give notice of this ruling.
6	Sierra vs. General Motors LLC 30-2023-01325216	<u>Motion for Reconsideration</u> Defendant General Motors LLC's Motion to Reconsider and Set Aside the Court's February 9, 2026, Order Granting Plaintiff's Motion for An Order Awarding Attorneys' Fees, Costs, and Expenses is DENIED. <u>Pending Motion</u> Defendant General Motors LLC moves the court for reconsideration and to set aside its February 9, 2026 order granting Plaintiff Aaron John Serra's Motion for Attorney's Fees. <u>Standard for Reconsideration</u> Civil Procedure Code section 1008 states that: When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may . . . make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. (Civil Proc. Code, § 1008, subd. (a), italics added.) The motion for reconsideration must be made "within 10 days after service upon the party of written notice of entry of the order". (<i>Ibid.</i>) In addition, a party may only seek reconsideration "based upon new or different facts, circumstances, or law." (<i>Ibid.</i>) Thus, a court acts in excess of jurisdiction when it grants a motion to reconsider that is not based upon "new or different facts, circumstances or law." (<i>Gilbert v. AC Transit</i> (1995) 32 Cal.App.4th 1494, 1499.) Here, the only new fact that Defendant offers is that Defendant's Counsel received the court's February 9, 2026 order after the order was already entered.

		That is not a new fact that would change the court's ruling on the merits. An example of the type of new facts to which Section 1008 refers is evidence about the reasonable hourly rate or reasonable number of hours expended by Plaintiff's Counsel. Therefore, the court will deny the motion for reconsideration. <u>Standard to Set Aside</u> The Civil Procedure Code grants the court discretion to "relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473, subd. (b).) In addition, a motion for relief from default may also be based upon "an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect." (Code Civ. Proc., § 473, subd. (b).) Where the attorney provides the declaration described in Section 473(b), relief from default is mandatory "unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect." (<i>Ibid.</i>; see <i>Johnson v. Pratt & Whitney Canada, Inc.</i> (1994) 28 Cal.App.4th 613, 622-623 [trial court could deny a motion for mandatory relief if it finds the attorney's declaration lacked credibility].) However, mandatory relief is limited to setting aside "any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client." (Code Civ. Proc., § 473, subd. (b).) The mandatory provision is narrower "insofar as it is only available for defaults, default judgments, and dismissals, while discretionary relief is available for a broader array of orders." (<i>Martin Potts & Associates, Inc. v. Corsair, LLC</i> (2016) 244 Cal.App.4th 432, 438.) Here, Defendant relies on the declaration of its counsel and the mandatory provision of Section 473(b), but seeks to set aside an order granting attorney's fees and not a default, default judgment, or dismissal. Thus, Section 473(b) does not grant the court the authority to set aside the February 9, 2026 Order under the circumstances of this motion.
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		Further, the Court of Appeal has held that: It is obvious that a party who seeks relief under [section 473] must make a showing that due to some mistake, either of fact or of law, of himself [or herself] or of his [or her] counsel, or through some inadvertence, surprise or neglect which may properly be considered excusable, the judgment or order from which he [or she] seeks relief should be reversed. In other words, a burden is imposed upon the party seeking relief to show why he [or she] is entitled to it, and the assumption of this burden necessarily requires the production of evidence. (<i>Hewins v. Walbeck</i> (1943) 60 Cal.App.2d 603, 609-610.) Thus, in a motion to set aside a default judgment or order under Section 473(b), the initial burden is on the moving party to prove mistake, inadvertence, surprise, or excusable neglect by a "preponderance of the evidence." (<i>Kendall v. Baker</i> (1988) 197 Cal.App.3d 619, 624.) In this case, Defendant has not shown that the issuance of the February 9, 2026 Order occurred due to mistake, inadvertence, surprise, or neglect on the part of Defendant's Counsel. As the court indicated in its February 9, 2026, it reviewed and analyzed the evidence, and based on the court's knowledge and familiarity with the relevant legal market and the experience, skill, and reputation of Plaintiff's Counsel, the court found that the hourly rates requested were reasonable. The court also determined that the hours expended were reasonable given the difficulty or complexity of this litigation. Even if there had been no mistake, inadvertence, surprise, or neglect by Defendant's Counsel, the only consequence would have been the Defendant's Counsel filed a timely opposition. Defendant has not presented any evidence or argument that the court would not have issued the February 9, 2026 order (or issued a different version of the February 9, 2026 order) if a timely opposition had been filed. Therefore, the court will deny the motion to set aside. Plaintiff shall give notice of this ruling.
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7	Harpel vs. New Orange Hills, Inc. 30-2025-01499188	<u>Motion to Compel Arbitration and Joinder</u> The court has no written tentative ruling at this time and will hear from the parties or their counsel. The court has heard and carefully considered all the arguments made with respect to the motion to compel arbitration brought in <i>Verrigni v. New Orange Hills, Inc.</i> , Case Number 2025-01486638, and will issue a ruling shortly. The parties and counsel need not repeat in detail all the arguments made in that case. However, they should focus on the ways in which the evidence and arguments in this case are the same or different than in <i>Verrigni v. New Orange Hills, Inc.</i> They also should clarify any ambiguities in the arguments in that case or this case.
8	Var vs. New Orange Hills, Inc. 30-2025-01486640	<u>Motion to Compel Arbitration and Joinder</u> The court has no written tentative ruling at this time and will hear from the parties or their counsel. The court has heard and carefully considered all the arguments made with respect to the motion to compel arbitration brought in <i>Verrigni v. New Orange Hills, Inc.</i> , Case Number 2025-01486638, and will issue a ruling shortly. The parties and counsel need not repeat in detail all the arguments made in that case. However, they should focus on the ways in which the evidence and arguments in this case are the same or different than in <i>Verrigni v. New Orange Hills, Inc.</i> They also should clarify any ambiguities in the arguments in that case or this case.
9	Clasby vs. City of Seal Beach 30-2025-01516539	<u>Demurrer</u> Defendant City of Seal Beach's Demurrer to the Third through Sixth Causes of Action in Plaintiff's Complaint is OVERRULED as to the 3rd, 4th, and 5th Causes of Action,